

26NNCV03109 26NNCV03109

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Case Number: 26NNCV03109 Hearing Date: August 3, 2026 Dept: P

[TENTATIVE] ORDER GRANTING PETITIONERS' MOTION TO APPOINT ARBITRATOR

I. INTRODUCTION

On April 21, 2026, Petitioner Scott Haymaker ("Petitioner") filed the instant petition against Respondent Mobilias Insurance Company ("Respondent") seeking the assignment of a case number for an uninsured/underinsured motorist arbitration pursuant to Insurance Code section 11580.2, subdivision (f)(1). Petitioner alleges that a case number is necessary to permit the filing of a petition under Code of Civil Procedure section 1281.6 to appoint a neutral arbitrator.

On July 9, 2026, Petitioner filed the instant motion to appoint an arbitrator. On July 20, 2026, Respondent Mobilias Insurance Company filed an opposition, and on July 27, 2026, Petitioner filed a reply.

II. LEGAL STANDARD

Code of Civil Procedure § 1281.6 provides that "If the arbitration agreement provides a method of appointing an arbitrator, that method shall be followed. If the arbitration agreement does not provide a method for appointing an arbitrator, the parties to the agreement who seek arbitration and against whom arbitration is sought may agree on a method of appointing an arbitrator and that method shall be followed. In the absence of an agreed method, or if the agreed method fails or for any reason cannot be followed, or when an arbitrator appointed fails to act and his or her

successor has not been appointed, the court, on petition of a party to the arbitration agreement, shall appoint the arbitrator.” (Code Civ. Proc. § 1281.6.) Upon such a petition, the court shall nominate five potential arbitrators from lists of people supplied jointly by the parties or obtained from a governmental agency concerned with arbitration or private disinterested association concerned with arbitration. (Ibid.) The parties shall then, within five days of receipt of the nominations, jointly select an arbitrator; if the parties fail to do so, the court shall select an arbitrator from among the nominees. (Ibid.)

III. ANALYSIS

Petitioner

moves for an order appointing a neutral arbitrator pursuant to Code of Civil Procedure section 1281.6 to resolve the parties' underinsured motorist ("UIM") dispute and directing the parties to proceed to arbitration within nine months of the Court's order. Petitioner contends that: (1) the insurance policy contains a valid agreement requiring arbitration of UIM disputes; (2) Petitioner served a written demand for arbitration on October 29, 2025; (3) Respondent acknowledged the demand on November 26, 2025; (4) despite the demand, Respondent has failed to participate in the selection of an arbitrator; and (5) because the parties have been unable to effectuate the contractual arbitration process, the Court must appoint a neutral arbitrator pursuant to Code of Civil Procedure section 1281.6 and Insurance Code section 11580.2, subdivision (f). (Motion, pp. 3-9.)

Respondent opposes the motion,

arguing that it is premature because: (1) Petitioner has not exhausted all available remedies, specifically the Blue Star Occupational Accident Insurance ("OAI") claim, which Respondent contends is the functional equivalent of workers' compensation benefits and must be resolved before the UIM arbitration proceeds; (2) the parties have not made meaningful efforts to agree upon the selection of an arbitrator as contemplated by Code of Civil Procedure section 1281.6; (3) Respondent remains willing to arbitrate and has attempted to meet and confer regarding arbitrator selection; and (4) Petitioner's motion was procedurally defective because it was served one court day late under Code of Civil Procedure sections 1005 and 1010.6. Respondent therefore requests that the Court deny the motion. (Opposition, pp. 2-8.)

As a preliminary matter, the Court

declines to deny the motion based on the alleged notice defect. Although Respondent contends the motion was served one court day late under Code of Civil Procedure sections 1005 and 1010.6, a court may consider untimely filed or served motion papers absent a showing that a party's substantial rights were affected. (Cal. Rules of Court, rule 3.1300(d); Code Civ. Proc., § 475.) Moreover, a party's appearance at the hearing and opposition to a motion on the merits waives procedural defects or irregularities in the notice of motion. (Carlton v. Quint (2000) 77 Cal.App.4th 690, 697.) Here, Respondent received actual notice of the motion, filed a substantive opposition addressing the merits, and identifies no prejudice resulting from the alleged one-court-day notice defect. Accordingly, the Court exercises its discretion to consider the motion on its merits.

CCP 1281.6 -
mandatory court appointment

Code of Civil Procedure section 1281.6 governs the appointment of arbitrators. Where an arbitration agreement specifies a method for appointing an arbitrator, that method must be followed. If the agreement does not provide a method, the parties may agree upon one. However, "[i]n the absence of an agreed method, or if the agreed method fails or for any reason cannot be followed," the court, upon petition by a party to the arbitration agreement, "shall appoint the arbitrator." (Code Civ. Proc., § 1281.6.)

Here, there is no dispute that a valid agreement to arbitrate exists. Likewise, the parties agree that the arbitration provision does not specify a method for selecting an arbitrator. Thus, the dispositive issue is whether the parties agreed upon a method of appointment or whether the agreed method failed such that court intervention is required under Code of Civil Procedure section 1281.6.

The record reflects that Petitioner demanded arbitration on October 29, 2025, and Respondent acknowledged the demand on November 26, 2025. Despite months of correspondence concerning the arbitration, the parties did not agree upon a method of selecting an arbitrator or identify a mutually acceptable neutral. (Castillo III Decl; Exh 1-2, 5-7.) Petitioner therefore contends the statutory prerequisites for court appointment have been satisfied, while Respondent argues the motion is premature because the parties have not yet engaged in meaningful efforts to agree upon an arbitrator.

Blue Star/OAI
dispute

In opposition, Respondent argues that the motion is premature because petitioner has not exhausted his Blue Star Occupational Accident Insurance ("OAI") claim. Respondent contends that, although rideshare drivers are classified as independent contractors under Proposition 22, Business and Professions Code section 7455, subdivision (e) provides that OAI benefits "shall be considered amounts payable under a worker's compensation law or disability benefit for the purpose of determining amounts payable under any insurance." Given this, Respondent argues OAI benefits are the functional equivalent of workers' compensation benefits and arbitration should not proceed until the OAI claim has been resolved. (Opposition, pp. 4-7.)

The Court is not persuaded. Business and Professions Code section 7455, subdivision (e) does not convert OAI benefits into workers' compensation benefits for all purposes. Rather, by its plain language, the statute provides only that OAI benefits "shall be considered amounts payable under a worker's compensation law or disability benefit for the purpose of determining amounts payable under any insurance." (Bus. & Prof. Code, § 7455, subd. (e), italics added.) Thus, the statute addresses the calculation of benefits or offsets, not whether an arbitrator may be appointed under Code of Civil Procedure section 1281.6

Likewise, Insurance Code section 11580.2, subdivision (f), governs the conduct of the arbitration where applicable, providing that the arbitrator shall not proceed until the insured's condition is stationary and ratable where workers' compensation rights exist. To the extent any OAI benefits ultimately affect Petitioner's recovery, that issue concerns the amount payable or any applicable offset and does not provide a basis to deny the present motion.

Appointment of
arbitrator

Because the Court finds that the requirements of Code of Civil Procedure section 1281.6 have been satisfied, the Court will proceed with the statutory appointment process. Within 10 days of notice of this order, each party shall submit to the Court a list of five proposed neutral arbitrators, together with each proposed arbitrator's qualifications and current contact

information. Upon receipt of the parties' submissions, the Court will nominate five individuals pursuant to Code of Civil Procedure section 1281.6. The parties shall then have five days after notice of the Court's nominees to jointly select an arbitrator. If the parties fail to do so, the Court will appoint an arbitrator from the nominees in accordance with Code of Civil Procedure section 1281.6.

IV. CONCLUSION AND ORDER

The Court

GRANTS petitioner's motion to appoint arbitrator.

The parties

are ordered to submit a list of five proposed neutral arbitrators together with each proposed arbitrator's qualifications and current contact information within 10 days' notice of this order. The Court will then nominate five individuals pursuant to Code of Civil Procedure section 1281.6. The parties shall then have five days after notice of the Court's nominees to jointly select an arbitrator.

Petitioner

is to give notice.

Dated: August 3, 2026

JARED D. MOSES

JUDGE OF THE SUPERIOR COURT